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Superior Court of California,
County of Los Angeles
1/03/2025 6:50 AM
David W. Slayton,
Executive Officer/Clerk of Court,
By I. Baytalyants, Deputy Clerk

Refer to File Number: TP134641
Attorney for Plaintiff

SUPERIOR COURT OF CALIFORNIA
COUNTY OF LOS ANGELES, NORTH VALLEY JUDICIAL DISTRICT
CHATSWORTH COURTHOUSE

VELOCITY INVESTMENTS LLC,
Plaintiff

v.

JOSE BARRIENTOS,
and DOES 1 through 15 inclusive
Defendant(s).

CASE NO.: 24CHLC01576

**DECLARATION IN RESPONSE TO
OSC RE: PLAINTIFF'S FAILURE
TO FILE PROOF OF SERVICE**

Date: January 23, 2025
Time: 8:30AM
Dept.: F41

I declare and state as follows:

1. I am an attorney at law duly licensed to practice before all of the courts of the State of California, and I am the attorney for VELOCITY INVESTMENTS LLC (hereinafter "Plaintiff"). In that capacity, I am personally familiar with the facts set forth in this declaration. If called as a witness, I could and would competently testify under oath to the following:

2. On or about January 18, 2024, Plaintiff brought suit in this basic consumer collection action and immediately sent out for service on the Defendant with our process serving company to the best address(es) available, 9028 TELFAIR AVE, LOS ANGELES, CA 91352. There, the Defendant was unknown. A true and correct copy of the process server's Declaration of Non Service is attached hereto as **Exhibit 1**.

3. Service was also attempted at the alternate address of 5760 LAUREL CANYON BLVD APT 3, VALLEY VILLAGE, CA 91607. There, the Defendant does not reside. A true and correct copy of the process server's Declaration of Non Service is attached hereto as **Exhibit 2**.

4. Plaintiff's counsel has located the new address of 24518 MCBEAN PKWY, VALENCIA, CA 91355 for the Defendant. Plaintiff sent the Summons and Complaint to its process serving company for service attempts. Plaintiff is currently awaiting its service results.

5. Thereafter, in the event Plaintiff is unable to serve the Defendant, a Request for Dismissal will be submitted to the Court for filing.

6. Accordingly, Plaintiff respectfully requests that this hearing be continued 120 days pending service of process. Plaintiff further requests that any and all sanction orders be stayed or vacated.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on December 30, 2024 at Cypress, California.

By:

✉ BRYANT BURNSTAD, SBN 297286
Attorney for Plaintiff

California Debt Collection License #10749-99.

This is an attempt to collect a debt by a debt collector and any information obtained will be used for that purpose.

EXHIBIT "1"



Attorney or Party without attorney: BRYANT BURNSTAD, BAR # 297286 RESURGENCE LEGAL GROUP, PC (SO CA) 10805 HOLDER STREET, SUITE 167 CYPRESS, CA 90630 <u>Telephone Number:</u> 8774400860 E-MAIL ADDRESS (Optional): ATTORNEY FOR (Name): [VELOCITY INVESTMENTS LLC]		
SUPERIOR COURT OF THE STATE OF CALIFORNIA, COUNTY OF LOS ANGELES		
PLAINTIFF: VELOCITY INVESTMENTS LLC DEFENDANT: JOSE BARRIENTOS		
DECLARATION RE DILIGENCE		CASE NUMBER: 24CHLC01576 FILE NUMBER: TP134641 LEVY OFFICER NUMBER:

I, Julio R. Ascorra , declare

I am a Registered Process Server and was retained to serve process in the above-referenced matter on the following person or entity: JOSE BARRIENTOS

I was on the dates herein mentioned over the age of eighteen years and not a party to the above-entitled action. I am authorized to serve legal process in the State of California. The following facts are within my personal knowledge and if sworn as a witness I can and will truthfully and competently testify thereto.

Documents: Summons, Complaint, Civil Case Cover Sheet, Civil Case Cover Sheet Addendum, General Order, Notice of Case Assignment, Order to Show Cause Hearing/Trial Date, Statement of Location, Voluntary Efficient Litigation Stipulation; FIRST AMENDED GENERAL ORDER ; ALTERNATIVE DISPUTE RESOLUTION INFORMATION PACKAGE; CERTIFICATE OF MAILING

I attempted personal service on the following dates and times with the following results:

Residential Address:

9028 TELFAIR AVE
LOS ANGELES, CALIFORNIA 91352

Date, Time and Results:

02/07/2024 12:09:00 PM - Per 43 year old April Aguilar current homeowner says subject is unknown here, never heard of him, also checked with next door neighbor who happened to be outside cleaning and he has never heard of defendant either. Bad address.

Description of person spoken to: Sex: FEMALE Age: 41-45 Skin Tone: WHITE Hair: BLACK Eye Color: BROWN Height: 5FT 4IN - 5FT 7IN Weight: 151 LBS - 170 LBS

Business Address:

☐ unknown

SERVICE FEE \$68.00

I declare under penalty of perjury under the laws of the State of California that the forgoing is true and correct and this declaration is executed on 2/7/2024 at NORTHRIDGE, CALIFORNIA
DATE CITY

Signature

Julio R. Ascorra

Printed Name

2023001643 / LOS ANGELES

Registration # / Registration County

EXHIBIT "2"



Attorney or Party without attorney: BRYANT BURNSTAD, BAR # 297286 RESURGENCE LEGAL GROUP, PC (SO CA) 10805 HOLDER STREET, SUITE 167 CYPRESS, CA 90630 <u>Telephone Number:</u> 8774400860 E-MAIL ADDRESS (Optional): ATTORNEY FOR (Name): [VELOCITY INVESTMENTS LLC]		
SUPERIOR COURT OF THE STATE OF CALIFORNIA, COUNTY OF LOS ANGELES		
PLAINTIFF: VELOCITY INVESTMENTS LLC DEFENDANT: JOSE BARRIENTOS		
DECLARATION RE DILIGENCE		CASE NUMBER: 24CHLC01576 FILE NUMBER: TP134641 LEVY OFFICER NUMBER:

I, Edward Chavez , declare

I am a Registered Process Server and was retained to serve process in the above-referenced matter on the following person or entity: JOSE BARRIENTOS

I was on the dates herein mentioned over the age of eighteen years and not a party to the above-entitled action. I am authorized to serve legal process in the State of California. The following facts are within my personal knowledge and if sworn as a witness I can and will truthfully and competently testify thereto.

Documents: Summons, Complaint, Alternative Dispute Resolution, Civil Case Cover Sheet, Civil Case Cover Sheet Addendum, General Order, Notice of Case Assignment, Order to Show Cause Hearing/Trial Date, Statement of Location

I attempted personal service on the following dates and times with the following results:

Residential Address:

5760 LAUREL CANYON BLVD APT 3
 VALLEY VILLAGE, CALIFORNIA 91607

Date, Time and Results:

02/20/2024 06:57:00 PM - Non-service. The subject does not live here. This information was provided by the present female tenant who answered via the intercom/entry system.; 02/14/2024 03:06:00 PM - Attempted service, no answer;

Business Address:

☐ unknown

SERVICE FEE \$68.00

I declare under penalty of perjury under the laws of the State of California that the forgoing is true and correct and this declaration is executed on 2/20/2024 at VAN NUYS, CALIFORNIA

DATE

CITY

Edward Chavez

2016258143 / LOS ANGELES

Signature

Printed Name

Registration # / Registration County